

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #10	CCRB Case #: 201609679	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/22/2016 6:00 AM	Location of Incident: § 87(2)(b)	Precinct: 43	18 Mo. SOL 5/22/2018	EO SOL 5/22/2018	
Date/Time CV Reported Tue, 11/22/2016 11:49 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/22/2016 11:49 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Andrew Bocchieri	00000	938079	NARCB BX
2. POM Matthew Kuhl	08652	950709	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A.LT Andrew Bocchieri	Abuse: Lieutenant Andrew Bocchieri entered and searched § 87(2)(b)	§ 87(2)(b)
B.POM Matthew Kuhl	Abuse: Police Officer Matthew Kuhl entered and searched § 87(2)(b).	§ 87(2)(b)

Case Summary

On November 22, 2016, § 87(2)(b) filed this complaint on behalf of his ex-wife, § 87(2)(b) via telephone.

On November 22, 2016, at approximately 6:00 AM, officers of Bronx Narcotics under the supervision of Lieutenant Andrew Bocchieri, including PO Matthew Kuhl, along with federal agents from Homeland Security and other federal agencies executed an arrest warrant for § 87(2)(b) at § 87(2)(b), in the Bronx (**Allegation A and B**). § 87(2)(b) was sleeping on the couch by the entrance and § 87(2)(b) was sleeping in her bedroom at the end of the hallway. § 87(2)(b) § 87(2)(b)'s nephew, was not present inside the apartment. PO Kuhl entered the apartment first, carrying a ballistic shield. In the process of entering § 87(2)(b)'s bedroom, § 87(2)(b) became startled and attempted to slam the bedroom door shut. The door allegedly bounced off PO Kuhl's ballistic shield and struck § 87(2)(b) on the head. § 87(2)(b) sustained bruising on her forehead and around her right eye, and cuts on her knuckles, forearm and wrist and was transported to § 87(2)(b). No arrests were made and no summonses were issued.

§ 87(2)(b) was not present for this incident and no arrests were made. Video footage obtained from § 87(2)(b) surveillance cameras did not capture the entry of § 87(2)(b) or the interaction inside the apartment.

This case was submitted past the 90 day bench mark due to difficulty in scheduling officers and obtaining information on the warrant.

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to § 87(2)(b)'s injuries
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of March 8, 2017, no notice of claim has been filed as a result of this incident according to the NYC Comptroller's office.

Civilian and Officer CCRB Histories

- This is § 87(2)(b) and § 87(2)(b)'s first complaint with the CCRB.
- Lieutenant Andrew Bocchieri has been a member of service for eleven years. He has two prior cases with two allegations. None of the allegations were substantiated. In CCRB# 201502236, an allegation of force was closed as complainant unavailable. In CCRB# 201506570, an allegation of an entry/search was closed as exonerated. § 87(2)(g)
- PO Matthew Kuhl has been a member of service for five years. He has four prior cases with six allegations. In Case# 201602798, an entry and search of premises allegation and a search of person allegation were substantiated with a Board recommendation of Command discipline A. The NYPD disposition is not yet available. In CCRB# 201304120, allegations of frisk and stop were closed as complainant uncooperative. In CCRB# 201509507, a force allegation was closed as victim unavailable. In CCRB#

201602798, a force allegation was closed as exonerated. § 87(2)(g)

Potential Issues

- The investigation was unable to obtain a copy of the warrant executed as it was by all accounts a Federal arrest warrant. In an initial call on January 19, 2017, US Marshals' Eastern district office confirmed an open warrant for § 87(2)(b) existed and was being handled by the Southern district's fugitive task force division. However, the Southern District desk would not provide a copy of the warrant, and Marshal Paul Brunhuber stated the US Marshal's office would not confirm or deny whether a warrant for § 87(2)(b) existed.
- § 87(2)(b) could not recall much of the incident in detail because she suffers from Alzheimer's disease.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
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-
-

Allegation A –Abuse of Authority: Lieutenant Andrew Bocchieri entered and searched § 87(2)(b) in the Bronx.

Allegation B –Abuse of Authority: Police Officer Matthew Kuhl entered and searched § 87(2)(b) in the Bronx.

It is undisputed that Lieutenant Andrew Bocchieri and Police Officer Matthew Kuhl entered and searched § 87(2)(b) in Bronx, New York on November 22, 2016 in an effort to arrest § 87(2)(b) in conjunction with federal authorities. It is undisputed that § 87(2)(b) was injured in the process of this entry and that no arrests were made.

§ 87(2)(b) stated he was awakened by knocking on the door (Board Review 01). § 87(2)(b) was sleeping in the living room, adjacent to the kitchen. § 87(2)(b) was sleeping in the bedroom at the end of the hall at the back of the apartment. Officers knocked approximately three or four times before breaking open the front door. Approximately six officers entered, with two going directly to the end of the hallway. § 87(2)(b) stood aside and a fourth officer, a Hispanic male, approached him, asked him in Spanish "Where is § 87(2)(b) The officer presented a document with § 87(2)(b) photograph on it. § 87(2)(b) identified § 87(2)(b) in the photograph but

stated he did not live at the location and was not present. § 87(2)(b) did not see any officer search the apartment and remained in the kitchen speaking to the Hispanic officer. After a few minutes, § 87(2)(b) walked out of the bedroom into the living room with a visible bruise on her forehead. Observing her injury, the Hispanic officer stated he would call for an ambulance and a supervisor for § 87(2)(b). § 87(2)(b) did not see how § 87(2)(b) sustained her injury but stated the bedroom door was broken as well. § 87(2)(b) did not interact with the other officers who left within a few minutes. § 87(2)(b) was taken by ambulance to § 87(2)(b).

§ 87(2)(b) did not recall interacting with officers or learn of any warrant (Board Review 02). She recalled waking up on her floor and saw officers leaving the apartment, with one officer speaking to § 87(2)(b). § 87(2)(b) did not recall how she ended up on the floor nor recalled seeing officers in her bedroom. The officer § 87(2)(b) observed speaking to § 87(2)(b) observed § 87(2)(b)'s injury, and stated "What's that" in reference to § 87(2)(b)'s injury to her face. § 87(2)(b) was unaware officers were looking for § 87(2)(b) until she was informed by § 87(2)(b) after the officers left. As noted in the potential issues section, § 87(2)(b) suffers from Alzheimer's disease and her recollection of the incident was poor.

Lieutenant Bocchieri stated that he and a team consisting of Bronx Narcotics officers, a detective from Narcotics Major Case unit, and approximately three federal agents executed a federal arrest warrant at § 87(2)(b) (Board Review 04). Lieutenant Bocchieri stated the Major Case unit detective and one of the federal agents had copies of the warrant but Lieutenant Bocchieri did not have a copy himself. Lieutenant Bocchieri had not taken any investigative steps in determining the location of the entry. Bronx Narcotics was solely providing manpower for a joint investigation between Homeland Security, the Federal Marshals, and Narcotics Major case unit. Lieutenant Bocchieri and his team knocked on the door approximately two or three times before an officer broke open the door. Lieutenant Bocchieri entered with several other officers, including PO Kuhl carrying a ballistic shield. Lieutenant Bocchieri did not observe officers search the apartment as he remained in the living room. Lieutenant Bocchieri was informed after the fact by PO Kuhl that as he (PO Kuhl) attempted to enter § 87(2)(b)'s bedroom, she attempted to close the door on him. The door bounced off PO Kuhl's shield, struck § 87(2)(b) on the head and knocked her to the floor. Lieutenant Bocchieri did not recall whether or not the bedroom door was damaged. § 87(2)(b) approached Lieutenant Bocchieri and he asked if she needed medical attention. Lieutenant Bocchieri did not know if any other officer spoke to § 87(2)(b) or § 87(2)(b). TRI and AIDED reports prepared by Lieutenant Bocchieri also noted § 87(2)(b) sustained minor bruising when she was struck in the face with a door during the execution of a federal arrest warrant in conjunction with Homeland Security (Board Review 06, 07).

PO Kuhl stated that the only information he received on the suspect was a nickname, "§ 87(2)(b)" to be arrested at possible address § 87(2)(b) (Board Review 05). The warrant was executed jointly between Bronx Narcotics Major Case unit and Homeland Security, although PO Kuhl believed ATF and Federal Marshals may have also been involved. Another officer, who he could not recall, used a ram on the apartment entrance door. Once the officer broke down the door, PO Kuhl was the first officer to enter the apartment. PO Kuhl carried the ballistic shield and cleared the apartment. He did not carry a copy of the warrant. PO Kuhl did not recall if any commands were issued or officers knocked prior to entering. He observed § 87(2)(b).

§ 87(2)(b) standing in the doorway and moved him to the left side, by the kitchen. PO Kuhl observed an individual, later identified as § 87(2)(b) run from a room on the right side of the corridor to the bedroom on the left, further down at the end of the corridor. PO Kuhl stated “We have a runner, back door, running to the back” and ran after § 87(2)(b). As § 87(2)(b) entered the bedroom, she turned and attempted to slam the door behind her. The door hit PO Kuhl’s shield and bounced off, swung inward and struck § 87(2)(b). PO Kuhl did not see where the door made contact with § 87(2)(b) or observe injuries on § 87(2)(b). § 87(2)(b) did not fall to the ground. PO Kuhl instructed her to show her hands and get down on the ground, which she did. PO Kuhl determined the room was clear and continued to the other rooms. When it was determined § 87(2)(b) was not in the apartment, PO Kuhl left with other officers and had no further interaction with either § 87(2)(b) or § 87(2)(b). PO Kuhl was unaware of § 87(2)(b) s injuries and he did not prepare the AIDED and TRI reports regarding § 87(2)(b) s injuries. PO Kuhl’s memo book entry notes that an entry was executed at § 87(2)(b) under the authority of Homeland Security Investigations (Board Review 03).

The US Federal Marshals agency confirmed § 87(2)(b) had an open warrant as of January 19, 2017 with the Southern district. However, the Federal Marshals agency would not confirm or deny whether an entry was executed at § 87(2)(b) in the Bronx, in regards to this warrant on November 22, 2016 or provide a copy of the warrant. TRI and AIDED reports prepared by Lieutenant Bocchieri also noted § 87(2)(b) sustained minor bruising when she was struck in the face with a door during the execution of a federal arrest warrant in conjunction with Homeland Security (Board Review 06, 07). A request for information on the warrant from Bronx Narcotics was returned to the undersigned with negative results, noting that Federal warrants were not in the NYPD system and the warrant was executed by the Federal Marshals.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED].

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date